

SENATE No. 106

The Commonwealth of Massachusetts

PRESENTED BY:

Joanne M. Comerford

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act transferring foster care review responsibilities to the Office of the Child Advocate.

PETITION OF:

NAME:

Joanne M. Comerford

DISTRICT/ADDRESS:

Hampshire, Franklin and Worcester

SENATE No. 106

By Ms. Comerford, a petition (accompanied by bill, Senate, No. 106) of Joanne M. Comerford for legislation to establish the Massachusetts foster care review office. Children, Families and Persons with Disabilities.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 66 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act transferring foster care review responsibilities to the Office of the Child Advocate.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 18B of the General Laws is hereby amended by striking out section
2 6A.

3 SECTION 2. Section 1 of chapter 18C of the General Laws is hereby amended by
4 inserting after the definition of "Critical incident" the following definition:-

5 "Committee", the foster care review interdisciplinary committee.

6 SECTION 3. Said section 1 of said chapter 18C is hereby further amended by inserting
7 after the definition of "Executive agency" the following 3 definitions:-

8 "Foster care placement", all out-of-home placements of children, youth, or young adults
9 by the department whether voluntarily or by court assigned custody.

“Foster care review”, an administrative review of the status of each child, youth or young adult who is in foster care placement.

“Local panel”, a foster care review panel of trained volunteer citizen reviewers and FCRO staff created pursuant to this chapter.

SECTION 4. Said section 1 of said chapter 18C is hereby further amended by inserting after the definition of “Office” the following 3 definitions:-

“Parties”, all parties involved in a specific child, youth, or young adult case.

“Permanency”, a legal, permanent family living arrangement.

“Secretary”, the secretary of the executive office of health and human services.

SECTION 5. Section 2 of said chapter 18C is hereby amended by striking out, in lines 2 and 3, the words “shall be independent of any supervision or control by any executive agency” and inserting in place thereof the following words:- shall be an independent state agency not subject to the supervision and control of any other executive office, department, commission, board, bureau, agency or political subdivision of the commonwealth.

SECTION 6. Said chapter 18C is hereby further amended by inserting after section 4 the following section:

Section 4A. (a) There shall be an interdisciplinary committee within the advisory council that shall include commissioner level or designee representation of the department, the office of the child advocate, the department of developmental services, the department of elementary and secondary education, the department of mental health, the department of public health, the department of transitional assistance, the department of youth services and the Massachusetts

rehabilitation commission to ensure that appropriate services are being delivered in the best interest of the child, youth or young adult. Experts may be invited to the committee meetings to address specific concerns or issues, including issues disproportionately impacting historically marginalized communities, transition age youth and issues and needs relating to lesbian, gay, bisexual, transgender or queer people. The committee shall be chaired by the child advocate and shall convene at least monthly.

(b) The committee shall:

(i) address and resolve case-specific issues that have been elevated by the child advocate; and

(ii) address systemic issues impacting progress towards permanency and services focused on the best interest of children, youth and young adults in foster care placement brought to the council's attention by any member of the committee or advisory council.

SECTION 7. Said chapter 18C is hereby further amended by inserting after section 14 the following 7 sections:-

Section 15. (a) The child advocate shall conduct foster care case reviews every 6 months of every child in foster care placement to make determinations and recommendations regarding the placement and progress towards permanency; provide information and direct reporting to the legislature, the department, the governor, the secretary, the chief justices of the juvenile and the probate and family courts, and the public regarding the foster care system in Massachusetts; make recommendations regarding foster care policy; and ensure oversight, accountability and transparency regarding the foster care system.

(1) The child advocate shall designate local panels of trained citizen reviewers to conduct foster care case reviews for every child in foster care placement at least every 6 months while in placement.

(2) The child advocate shall create and implement the following:

(i) Policies and procedures regarding the duties of the office of the child advocate staff, including the scheduling and conduct of case reviews, advanced notice to parties to the case, development of individual case review reports including findings and recommendations, dissemination of individual case review reports to the parties and follow-up of individual cases;

(ii) Guidelines regarding citizen reviewer qualifications and recruitment;

(iii) Training programs for citizen reviewers which shall include an initial training program and periodic in-service training programs;

(iv) Policies and procedures for local panels in the conduct of individual case reviews;

(v) Policies and procedures for the office of the child advocate regarding the conduct of reviews, follow-up of individual cases between reviews, communication with parties, structure, format and content of individual case review reports and access to data and information;

(vi) A record-keeping system for all local panel files, including individual case reviews and aggregate data;

(vii) Content and format of periodic and annual child advocate aggregate reports.

(3) The child advocate shall provide periodic and annual aggregate reports to the legislature, governor, secretary, the department, the chief justices of the juvenile and the probate and family courts and the public.

(4) The child advocate shall have access to all relevant information regarding any child, youth or young adult eligible for foster care case review including, but not limited to, data, records and case files provided to the child advocate by the department.

(5) Individual case review reports shall be provided to all parties to the legal case for judicial consideration and for the purposes of the safety and well-being of the child and permanency planning.

(b) The child advocate shall be the only entity that conducts periodic, administrative foster care case reviews as required by the Adoption Assistance and Child Welfare Act of 1980 (Public Law 60 96-272).

Section 16. (a) The child advocate shall designate local panels of citizen reviewers, in geographical locations that correspond with the department's service areas, to conduct foster care case reviews. The number of panels required is determined by the child advocate in accordance with the number of children, youth and young adults in foster care placement within each service area. The child advocate shall create and implement citizen volunteer recruitment efforts and select citizen volunteers from local areas to serve on local panels. A person employed by the child advocate, the department, a child welfare agency or juvenile and probate or family courts shall not be appointed to a local panel.

(b) Each local panel, comprised of 1 office of the child advocate staff reviewer and 2 trained citizen reviewers, shall conduct individual foster care case reviews in accordance with the policies and procedures created and implemented by the child advocate.

Section 17. (a) The foster care case review shall be conducted to determine:

(1) necessity, appropriateness and safety of the child, youth or young adult's current placement;

(2) extent of the parties' compliance with the permanency or action plan;

(3) extent of progress made toward alleviating or mitigating the causes necessitating the placement;

(4) extent to which services in the plan are being provided and the identification of any barriers to receiving the needed services;

(5) progress made toward the permanency goal;

(6) whether the permanency goal should be amended;

(7) projected date by which child may be in a permanent placement;

(8) goals for the next 6 months;

(9) additional findings and recommendations in accordance with the child, youth or young adult's best interest; and

(10) well-being status of the child or youth; provided, that well-being shall be of the whole child or youth and includes physical health development and safety; psychological and

109 emotional development; social development and behavior; and cognitive development and
110 educational achievement.

111 (b) The local foster care case review meeting shall be facilitated by an office of the child
112 advocate staff reviewer who is responsible for completing the individual case review report of
113 findings and recommendations.

114 (c) Anyone with a role in achieving the permanency goal for the child, youth or young
115 adult shall be invited to the review. The individual case review report shall be submitted to the
116 department, the juvenile or probate and family court and all other legal parties to the case within
117 30 days after the foster care case review.

118 (d) The department shall comply with the child advocate individual case review findings
119 and recommendations, subject to an appeals process developed and agreed to by the child
120 advocate and the department.

121 Section 18. (a) The department shall provide the child advocate with unrestricted access
122 to any and all information pertaining to the child, youth or young adult's needs including
123 electronic and hard copy records, reports and materials, specifically department records
124 including evaluations conducted by external or independent providers and court evaluations.

125 (b) The department shall notify the child advocate of a child, youth or young adult
126 removal from home, placement, change to placement or case closure no later than two weeks
127 from the date of the occurrence.

128 The child advocate shall be bound by any limitations on the use or release of information
129 imposed by law upon the party furnishing such information.

Section 19. The child advocate shall develop internal procedures, including staffing and budget, subject to appropriation, appropriate for the effective performance of all duties established under sections 15 through 17, inclusive, of this chapter.

Section 20. (a) The child advocate shall report annually to the governor, the president of the senate, the speaker of the house of representatives, the joint committee on children, families and persons with disabilities, the chief justices of the juvenile and the probate and family courts, the secretary and the commissioner of the department on the activities of the child advocate, including, but not limited to, statistics and analysis of aggregate data from the foster care reviews regarding strengths, issues, policy concerns and problems which have come to the attention of the child advocate from analysis of the aggregate data. The child advocate shall make recommendations to address the issues, concerns and problems identified.

(b) The reports shall be made public and posted on the website of the office of the child advocate.

Section 21. No person employed by, contracted by or volunteering for the office of the child advocate shall be subject to suit directly, derivatively or by way of contribution or indemnification for any civil damages under the laws of the commonwealth resulting from any act or omission performed during or in connection with the discharge of duties within the scope of employment or appointment, unless such act or failure to act was committed with gross negligence, maliciously or in bad faith.

SECTION 8. (a) The office of the child advocate shall develop a foster care review transition and implementation plan with a timeline. The plan shall be completed no later than 210 days after the effective date of this act.

152 (b) Implementation of the transition plan shall occur no later than 15 months after the
153 effective date of this act.